



SUMMARY REPORT

Agenda Date: 10/8/2019

To: Board of Supervisors

Department or Agency Name(s): The Independent Office of Law Enforcement Review and Outreach (IOLERO)

Staff Name and Phone Number: Karlene Navarro, 565-1534

Vote Requirement: Majority

Supervisorial District(s): Countywide

Title:

Funding and Approval of 1.0 FTE allocation - Department Analyst - Position for the Independent Office of Law Enforcement Review and Outreach

Recommended Action:

Adopt Resolution authorizing a budgetary adjustment to the FY 2019-2020 Final Budget for the Independent Office of Law Enforcement Review and Outreach from General Fund contingencies in the amount of \$49,043 to cover position costs, and amending the department's position allocation to add 1.0 FTE Department Analyst (4/5th Vote Required)

Executive Summary:

This item requests approval to amend the position allocation list of the Independent Office of Law Enforcement Review and Outreach (IOLERO) to add a 1.0 FTE equivalent Department Analyst to assist with daily administrative, budgetary and operational duties to allow the Director to focus on incoming audits and the backlog of approximately 26 audits which occurred between 2017 and 2018 before she was appointed. □

This request to use contingencies cannot wait until mid-year budget updates or budget hearings because the extent of the backlog is so substantial, the Director must address it immediately while attempting to stay current on the new, incoming audits and other department functions. Further delay will result in the department falling irreparably delinquent in its audit function. Simultaneously, if all the department's limited resources are focused on its audits and backlogged audits, IOLERO also cannot perform its other functions, including but not limited to community engagement and management of the Community Advisory Council (CAC).

Discussion:

On or about July 22, 2019, the Director of IOLERO completed a comprehensive examination of the status of IOLERO's audits and determined that there is a backlog of approximately 26 audits which took place between December 2017 and July 2018 including two officer-involved-shootings and an allegation of misconduct by deputies at the jail.

The current director was appointed by your Board on March 12, 2019 and attended the first available internal affairs training on June 10 - 12, 2019. Internal affairs training is crucial to acquiring the legal foundation and acumen necessary to complete audits of administrative investigations. It was not until July of 2019, that the

number and scope of the backlog became known at which time the Director began looking into solutions to completing the backlog while staying current on the office's other many obligations such as incoming complaints / audits, managing the Community Advisory Council (CAC), community outreach, administration of the office, budgetary work and other ministerial responsibilities.

In addition to discovering the scope of the audit backlog, other pressing office needs have arisen. For example, since starting six months ago, the Director has spent a lot of time meeting with stakeholders throughout the county, observing IOLERO's operations and its CAC meetings. One concern that has arisen is that IOLERO has not fostered a place for Latinos, other people of color, and the community-at-large in IOLERO's and the CAC's work. The Director recently recommended refocusing IOLERO's efforts and resources to allow increased community engagement and to find ways to tap into the Latino community, other communities of color and the community-at-large in addition to focusing more resources on the audits and audit backlog. However, based on the feedback received, redistributing IOLERO's current resources will not be sufficient to address IOLERO's many critical needs.

During FY 2019/20 Budget Hearings, before the Director completed her review of the audit backlog, your Board approved funding in the amount of \$80k (\$40k per year) for a part-time Community Engagement Coordinator for IOLERO. That amount and the community engagement coordinator duties are included in the estimate of the funding needed to cover this more comprehensive full time, permanent position. However, upon learning the number and scope of IOLERO's backlog, it was determined the part-time position will not be sufficient to help support the department while it attempts to address the backlog, the current audits and the department's many other duties. Once the backlog is contained, the full-time department analyst will have to remain a permanent position in order to avoid another backlog and to attempt to move the department forward.

The Department Analyst will support the director by assisting with IOLERO's budget, legislative proposals and Board items, conduct research as needed, and supervise the office's administrative coordinator in day-to-day prioritization of duties. Additional duties will include:

- (1) Community engagement program including identifying a venue, scheduling and coordinating a minimum of one community outreach event per month with a focus on the Latino community, other communities of color and the broader Sonoma County community.
- (2) CAC meetings including all of the administrative and legal requirements associated with facilitating Brown Act meetings.
- (3) Community Advisory Council subcommittee projects and meetings including the Grant-writing Program and Data, Statistics and Policy Program and Community Engagement Program.
- (4) Community Policing Program.

The completion of the audits is important to the integrity of IOLERO and the interests of the complainants and the community. The backlog is substantial and the current Director has new audits incoming (two audits are currently being completed and seven new audits were recently received) in addition to a plethora of other administrative, budgetary and ministerial duties to manage. Accordingly, the Director is requesting funding and approval for a permanent, full time - Department Analyst - position for IOLERO. The expected hire date is

January 2020.

Prior Board Actions:

June 2019 Board allocated General Fund of \$80,000 over two years for a Community Engagement Coordinator extra help position.

FISCAL SUMMARY

Expenditures	FY 19-20 Adopted	FY20-21 Projected	FY 21-22 Projected
Budgeted Expenses		118,600	158,600
Additional Appropriation Requested	\$49,043		
Total Expenditures	\$49,043	118,600	158,600
Funding Sources			
General Fund/WA GF		118,600	158,600
State/Federal			
Fees/Other			
Use of Fund Balance	\$49,043		
Contingencies	\$49,043		
Total Sources	\$49,043	118,600	158,600

Narrative Explanation of Fiscal Impacts:

The cost for a full time Department Analyst position for the remainder of FY 2019-20, assuming a January 1st start date, is \$89,043. The annual salary and benefits cost for the position is \$158,600.

The department is requesting additional appropriations from general fund contingencies in the amount of \$49,043 for FY 2019-20. IOLERO will use the \$80,000 (\$40,000 per year for two years) in general fund that the Board allocated for an extra help position as part of the FY 2019-20 budget hearing process to offset the Department Analyst position costs in FY 2019-20 and FY 2020-21. Appropriations for future years will be requested as part of the annual budget process.

Staffing Impacts:			
Position Title (Payroll Classification)	Monthly Salary Range (A-I Step)	Additions (Number)	Deletions (Number)
Department Analyst	\$5790.02 - \$7,038.81	1.0	

Narrative Explanation of Staffing Impacts (If Required):

N/A

Agenda Date: 10/8/2019

Attachments:

Resolution Amending Department Allocation

Budget Resolution

Related Items “On File” with the Clerk of the Board: